

REGISTER OF WAGE DETERMINATION UNDER		U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT		EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary		WAGE AND HOUR DIVISION
of Labor		WASHINGTON D.C. 20210
		Wage Determination No.: CBA-2026-29
Diane Koplewski	Division of	Revision No.: 2
Director	Wage Determinations	Date Of Last Revision: 02/09/2026

State: Virginia

Area: Norfolk

Employed on NAVFAC MID-ATLANTIC contract for CUSTODIAL SERVICES AT NAVAL STATION NORFOLK, NORFOLK, VIRGINIA.

Collective Bargaining Agreement between contractor: Titan Facility Services, LLC, and
union: Laborers' International Union of North America, AFL-CIO Local , effective 04/01/2023 through 04/15/2026.

In accordance with Section 2(a) and 4(c) of the Service Contract Act, as amended,

employees employed by the contractor(s) in performing services covered by the Collective Bargaining Agreement(s) are to be paid wage rates and fringe benefits set forth in the current collective bargaining agreement and modified extension agreement(s).

NATIONAL SERVICE CONTRACT AGREEMENT

BETWEEN

LABORERS' INTERNATIONAL UNION OF NORTH AMERICA, AFL-CIO

AND

TITAN FACILITY SERVICES, LLC.



EFFECTIVE: 04/01/2023

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NATIONAL SERVICE CONTRACT AGREEMENT

THIS AGREEMENT made and entered into this **1st** day of **April 2023** by and between **Titan Facility Services, LLC** (hereinafter referred to as the Employer), and the **LABORERS' INTERNATIONAL UNION OF NORTH AMERICA, AFL-CIO** (hereinafter referred to as the Union).

ARTICLE I

PURPOSE AND SCOPE

It is the intent and purpose of the parties hereto to set forth herein the basic agreement covering wages, hours of work and conditions of employment to be observed between the parties hereto, and to provide procedures for prompt, equitable adjustments of alleged grievances to the end that there shall be no work stoppages, strikes or lockouts during the life of this Agreement.

ARTICLE II

UNION RECOGNITION

Section 1 The Employer recognizes the Union as the sole exclusive collective bargaining representative of all employees of the Employer with respect to wages, hours and all other terms and conditions of employment.

Section 2 At such time as a majority of the employees of the Employer, at a location not covered by this Agreement, which is not an accretion to existing bargaining units, designates the Union as their collective bargaining representative, as evidenced by a card check, they shall be covered by this Agreement, effective on the same date that the Addendum A covering wages becomes effective. The effective date of Addendum A is determined in the negotiations of wages between the Union and the Employer.

Section 3 Should a dispute arise between the parties with reference to the card check, either party may refer such dispute to the arbitration procedure contained in the Agreement.

ARTICLE III

UNION SECURITY

Section 1 All present employees who are members of the Union, on the effective date of this Agreement, shall remain members as a condition of employment. All present employees who are not members of the Union shall, as a condition of employment, become members of the Union no later than the thirty first (31st) day after the effective date of this Agreement. New employees hired hereafter shall, as a condition of employment, become members of the Union no later than the thirty first (31st) day of their employment. Membership means the payment of an amount of money equal to the Local Union's regular and uniformly imposed initiation fees and dues. Failure to comply with this requirement shall result in discharge of the employee upon written notification to the Employer by the Union, that an employee has failed to tender the appropriate dues and fees uniformly imposed upon all employees in the bargaining unit.

Section 2 The foregoing provision shall not apply in any state to the extent that it may be prohibited by state law. However, the Union is required under this Agreement, to represent all of the employees in the bargaining unit, fairly and equally, without regard to whether or not an employee is a member of the Union. The terms of this Agreement have been made for all employees in the bargaining unit and not for members of the Union only. Accordingly, it is fair and equitable that each employee in the bargaining unit assumes his/her fair share of meeting the Union's cost and expenses in performing its duties, as the exclusive bargaining representative.

Section 3 When work covered by this Agreement is to be performed upon property of the United States Government (as to which the provisions of any state's "right-to-work" laws are inapplicable), Section 1 shall apply for the duration of such work.

Section 4 In the event that in any or all of the states described in Section 2 of this Article, a decision or action of the United States Congress, State Legislature, or a court or administrative board of competent jurisdiction shall make the "Union Shop" or "Agency Shop" a lawful practice, the same shall become operable immediately and shall apply to all present and future employees.

Section 5 The Union agrees to indemnify the Employer for any costs, including legal fees, or liability incurred as a result of the Union's implementation and enforcement of the provisions of this article.

ARTICLE IV **DUES CHECK-OFF**

Section 1 The employer agrees to honor check-off cards, signed by individual employees, which authorizes the Employer to deduct from the employee's paycheck each month, the union dues, lawful fees & assessments as certified by the Union and contributions, and remit same within twenty (20) days, to the Secretary-Treasurer of the appropriate Local Union. The Union agrees that in the event of any change in the Union's dues structure, it will notify the Employer twenty (20) days prior to the first (1st) pay period of the following month. The Employer will furnish the Union with the names and addresses of all newly hired employees.

Section 2 The Employer agrees to deduct and transmit to the Laborers' Political League, five cents (\$.05) for each hour worked from the wages of those employees who have voluntarily authorized such contributions on the forms provided for that purpose by the Union. The transmittals shall occur monthly and shall be accompanied by a list of names of those employees for whom such deductions have been made, and the amount deducted for each such employee.

ARTICLE V **NO DISCRIMINATION**

Neither the Employer nor the Union shall discriminate against, or in favor of, any employee on account of race, color, creed, national origin, political belief, sex, age, veterans status or disabled, because any employee exercised his/her rights under any federal or state law. All Employer policies, rules and interpretations of this Agreement shall be applied equally to employees in the bargaining unit.

ARTICLE VI
UNION REPRESENTATION

Section 1 The number and need of Stewards shall be determined by the Union and appointments thereof will be made by the appropriate Business Manager. The Union agrees to limit the number of Stewards to a maximum of one (1) per shift where possible.

Section 2 The Local Union shall supply the contractor in writing and shall maintain with the contractor on a current basis, a complete list of all authorized Stewards, together with the designation of the group of employees each is authorized to represent.

Section 3 The Employer agrees to recognize the officers and duly designated representatives of the Local Union and shall be kept advised, in writing, by the Local Union of the names of its officers and representatives.

Section 4 The Employer agrees that in the event it is planned to transfer a Steward, officer, or representative from one work shift and/or shop to another, it will inform the Local Union five (5) days prior to taking such action.

Section 5 Authorized agents of the Union shall have access to the Employer's establishment during working hours for the purpose of adjusting disputes, investigating working conditions, collection of dues, and ascertaining that the Agreement is being adhered to, provided, however, that advance notice be given so that such visits do not unduly interfere with the Employer's operation. All visits are subject to Government regulations.

ARTICLE VII
DISCHARGE OR SUSPENSION

Section 1 The Employer shall not discipline or discharge any employee without just cause. An employee shall be subject to discharge for the following reasons:

(a) Significant dishonesty, which includes meaningful falsification of time cards, time clock, or time sheets.

(b) Intoxication during working hours.

(c) Use, possession, and/or distribution of illegal drugs, or being under the influence of illegal drugs during working hours.

(d) Fighting while on the premises.

(e) Deliberate significant property damage or other such gross misconduct.

(f) Not reporting to work, or over-staying an authorized leave of absence, without notifying the Employer for three (3) consecutive workdays.

(g) A significant false statement made on the application for employment, or to the medical examiner, with the intent to deceive.

(h) Unauthorized possession of firearms or explosives within facilities.

(i) Employees permanently restricted by the Government from entering the Government installation.

(j) Sleeping on the job.

Section 2 Other than a discharge for a reason identified above in Section 1, the Employer shall impose progressive discipline in the following manner:

(a) First Offense within any consecutive 12 month period: Written warning and counseling

(b) Second Offense within any consecutive 12 month period: One (1) day suspension

(c) Third Offense within any consecutive 12 month period: Dismissal, or three (3) day suspension, at the Employer's discretion

(d) Fourth Offense within any consecutive 12 month period: Dismissal, or five (5) day suspension, at the Employer's discretion

(e) Fifth Offense within any consecutive 12 month period: Dismissal, or fifteen (15) day suspension, at the Employer's discretion

Section 3 No employee may be discharged unless at least one prior offense within any consecutive 12 month period is similar to the ground(s) for the proposed discharge.

Section 4 Pursuant to the Worker Adjustment and Retraining Notification Act (Title 29 U.S. Code, Section 2103), the parties understand that all employees have been hired by the Employer to fulfill the Employer's service contract with the U.S. Government, and employment is therefore limited to the duration of the Employer's undertaking. It is further understood that the employees' employment will terminate upon completion of the service contract if the Employer's contract is not renewed.

ARTICLE VIII

GRIEVANCE PROCEDURE AND ARBITRATION

Section 1 The parties to this Agreement, in the interest of resolving all disputes, complaints or grievances, in connection with the interpretation or application of the terms of this Agreement, have settled upon the following orderly and peaceful procedures:

Step One: The employee shall immediately report to his/her Steward any complaints, disputes or grievances which he/she believes requires adjustment. The Steward, designated by the Union, shall immediately investigate to ascertain whether the complaint has merit and report the results thereof to the Union Business Manager. The Union shall be the sole judge as to the validity of any grievance and in the event the Business Manager believes the grievance has merit, he/she shall attempt to resolve the dispute with the Employer's Supervisor, within ten (10) working days after notice thereof. If the dispute is not resolved within that period of time, the matter shall be referred to Step Two, in writing, within ten (10) days. If the matter is not referred within the ten (10) days, the matter shall be closed.

Step Two: The Business Manager shall refer the matter in writing, to the General President of the International Union or his designee, and a copy to the Employer. The two (2) parties will then meet in an effort to settle the grievance. If no satisfactory settlement is arrived at within ten (10) days, either party may, within ten (10) additional days, refer the matter to Step Three, Arbitration. Prior to Arbitration, the Employer or the Union by mutual consent may request Mediation through the Federal Mediation and Conciliation Service. The General President of the International Union, or his designee, shall have full authority to determine whether or not the Union wishes to process the grievance into Step Three, Arbitration.

Step Three: The Party invoking the provision of Step Three shall call upon the Federal Mediation and Conciliation Service to supply both the Employer and the Union with a list consisting of at least three (3) and not more than five (5) individuals who would serve as Arbitrator. The parties may then invoke the usual procedures to strike off objectionable names. The party invoking arbitration shall strike first. The decision of the Arbitrator shall be final and binding upon both parties. The cost of such arbitration shall be shared equally by both parties.

Section 2 The parties may, by mutual consent, select a mutually acceptable neutral individual to act as a temporary or permanent Arbitrator for disputes arising under the terms of this Agreement.

ARTICLE IX

SENIORITY

Section 1 The Employer recognizes seniority for all employees who have been continuously employed at the same location for a period of thirty (30) calendar days, based upon the length of continuous service, with previous, present and succeeding Employers, according to the Employer's and the Union's records. Seniority is an important factor to be considered by it in shift assignments, promotions, demotions, lay-offs, and recalls after lay-offs within the unit. However, the Employer may also consider efficiency and capability, provided that when these factors are approximately equal, seniority shall prevail.

Section 2 A break in seniority shall occur in the following events:

- (a) If an employee quits.

(b) If an employee is discharged for cause.

(c) Not reporting to work, or over-staying an authorized leave of absence, without notifying the Employer for three (3) consecutive workdays.

(d) If an employee is laid off for more than six (6) months.

(e) If an employee leaves due to military TDY assignment.

Section 3 The Employer shall supply the Union with an up-to-date seniority list on the effective date of this Agreement and at the start of each contract year under the Employer's contract with the Activity, every six (6) months thereafter, and at the termination of the Employer's contract with the Activity.

Section 4 Every new (non-seniority) employee hired by the Employer shall be on probation for a period of thirty (30) calendar days and during this probationary period, an employee may be dismissed for any reason. Any employee so dismissed, shall not have a right to invoke the grievance and arbitration procedure of this Agreement.

ARTICLE X **PROMOTIONS**

Section 1 When the Employer determines that a vacancy exists in the classification of Group Leader, a notice of the vacancy shall be posted for a period of three (3) calendar days in the normal posting locations. Any employee in the bargaining unit shall be permitted to sign the notice indicating his/her desire to be selected for the position.

Section 2 In effecting a promotion, the Employer will first give consideration to employees of the unit and selection will be made therefrom unless an outside applicant is clearly better qualified.

Section 3 The application of all candidates will be reviewed with full regard given to each candidate's skills, abilities and experience. In making selections for promotion within the bargaining unit, the Employer may consider willingness to relocate as a criteria, however, all other factors being equal, the Employer agrees to promote the most senior employee.

ARTICLE XI **LEAVE OF ABSENCE**

Section 1. - Personal Leave of Absence.

A leave of absence without pay for reasonable cause, as determined by the Employer, may be granted for a period up to ninety (90) calendar days, with written approval of the employee's Supervisor at least fifteen (15) days in advance of such leave of absence, providing the employee can be spared from his/her regularly assigned job duties. Employees who are away for a period longer than the term of the leave of absence, or who accepts employment elsewhere without permission of the Employer during such leaves of absence, shall be considered to have voluntarily terminated their employment with the Employer. Employees shall not receive holiday pay for any holiday which

falls during the period they are on leave without pay. Employees on leaves of absence without pay shall not accrue sick leave or vacation for those periods of absence.

Section 2. - Military Leave of Absence.

(a) The Employer and the Union agree to abide by the provisions of the Selective Service Act, and the Veteran's Reemployment Act, insofar as the provisions of said Acts apply to the rights of employees and the obligations of the Employer.

(b) Employees who are members of the National Guard and Military Reserve Units, shall be granted necessary time off, without pay, in order that they may fulfill their military obligations. These employees must notify their Supervisor immediately upon receiving notifications of training period or other obligations requiring a military leave of absence. Employees may elect to use earned vacation benefits (if eligible) during periods of military service.

(c) Active military personnel shall not be granted any leave of absence for any military TDY assignments by their military agency. Per Article IX, Section 3(e), an employee leaving his/her work due to a TDY assignment, shall lose his/her seniority rights.

Section 3. - Injury or Sickness Leaves of Absence.

An employee desiring leave of absence from his/her employment shall secure written permission from the Employer. The maximum leave of absence shall be for ninety (90) days. Permission for leave must be secured from the Employer with a copy mailed to the Union. Granting of leave of absences shall be for the following reasons: sickness, death in the immediate family, Union activities, and cases considered extreme hardship for an employee or any member of his/her immediate family, military duty, and in the case of compensation injuries or occupational disease. Leave of absence shall not cause a change in seniority date. If benefits accrue during a year in which a leave of absence is taken, they shall be prorated according to service during that year. Leave of absence for maternity shall be granted in accordance with applicable law.

Section 4. - Medical Treatment.

The Employer provides Workmen's Compensation coverage for employees who sustain an injury or contract a sickness covered by Workmen's Compensation. The Employer will pay the injured or sick employee the difference between hours actually worked and hours scheduled on the date of the compensable injury.

ARTICLE XII **WAGES**

Employees shall be paid wages, shift premiums and fringe benefits in accordance with the schedule of wages identified as Addendum A for each location. The rates of pay, shift premiums and fringe benefits, shall be negotiated between the Employer and designated representatives of the International Union that has jurisdiction to represent the employees.

ARTICLE XIII

SHIFT SCHEDULING, BASIC WORKWEEK & HOURS OF WORK

All employees shall be assigned to work in accordance with the hours of work and shifts determined by the Employer and identified as Addendum A for each location.

Section 1 - Workweek

The regular workweek for all employees shall begin and end at 12:00 midnight on Saturday. The Employer will make every effort in scheduling to ensure that no employee works more than seven (7) consecutive days. Due to the inconsistent tasks and frequency scheduling required by the contracting agency, the Union recognizes the fact that it is impossible to place all of the Employer's employees on a thirty five (35) hour workweek, therefore, the Employer agrees to place as many employees as possible on a thirty five (35) hour, five (5) day per week workweek. Employees who are unable to report to work on time are to call in at least two (2) hours prior to the start of their shift if possible.

Section 2 - Days Off

Each full time employee shall have two (2) scheduled days off in each regular workweek. The Employer must notify the affected employee at least two (2) calendar days in advance of any change in regular "scheduled days off". Where employees are required to maintain continuous operation of departments or assignments, days off may be fixed or rotated consistent with the requirements of the service. The Employer will make every reasonable effort to arrange work schedules so that a maximum number of employees will be off duty on two (2) consecutive days consistent with operational requirements.

Section 3 - Shifts

Shifts for all regular employees shall be established as follows:

(a) Shifts will be established by the Employer to best accomplish the task and frequency schedules.

(b) Employees transferred from one shift to another shall receive at least twenty-four (24) hours notice except during an emergency.

(c) Emergency Discontinuance of Operation

In the event of any emergency (e.g., severe weather conditions) requiring the discontinuance of the Employer's operations, employees will be released from work and/or will be excused from their obligation to report for work at least to the same extent as employees shall be paid for the remainder of the shift or scheduled duty hours whenever the installation is closed due to weather conditions or other circumstances beyond control. When emergency closures occur and the employer is compensated by the government as if the operations continued normally; the employee will also be compensated accordingly. This will be applicable to closure due to Presidential Executive Orders or any other lawful order by the government.

(d) There shall be a fifteen (15) minute rest period during the first half of each employee's shift providing their scheduled workday exceeds five (5) hours. Such rest periods shall be taken without loss of pay at a work location to be determined by the Employer. Employees scheduled to work five (5) hours or less in any one (1) workday, shall not be granted rest periods.

(e) No employee shall be required to work more than four (4) hours without a lunch period. Meal periods shall be a minimum of one half (1/2) hour and a maximum of one (1) hour and shall be without pay.

(f) The provisions of this Article shall not be construed as a limitation upon the number of hours per day per week the Employer may operate business or schedule its employees, nor shall it be construed as a guarantee of the minimum of hours available to employees.

ARTICLE XIV

SHOW UP AND REPORTING TIME

Any employee reporting for work at the regular starting time when he/she has not been notified not to report and for whom no work is provided, shall receive two (2) hours pay at his/her regular hourly rate. Any employee reporting for work at the regular starting time, and who is placed at work, shall be paid for no less than four (4) hours at his/her regular rate, even though four (4) hours have not been worked. If more than four (4) hours are worked in any one (1) shift, an employee shall receive pay for actual hours worked. Any employee called in outside his/her regular working hours, or on his/her scheduled day(s) off, shall be guaranteed a minimum of three (3) hours pay at the regular rate.

ARTICLE XV

OVERTIME

Overtime shall be paid at the rate of one and one half (1-1/2) times the straight hourly rate. Overtime shall be defined as all work performed in excess of forty (40) hours in any workweek (or as otherwise defined by law). Nothing in this Article shall prevent an employee from seeking a claim for overtime in accordance with the grievance and arbitration procedures of this Agreement.

The Employer will distribute overtime work as is necessary, and as fairly as possible between employees affected by such overtime work.

ARTICLE XVI

HOLIDAYS

Section 1 Employees shall be entitled to the number of paid holidays as identified in Addendum A covering their location. Any employee who is absent without an acceptable excuse on the scheduled workday immediately preceding, and/or the scheduled workday immediately following a holiday, shall forfeit his/her right to be paid for such holiday. If an employee is prevented from working on the workday immediately preceding or the workday immediately following a holiday because of illness attested to by a physician, or death in his/her immediate family, such fact

shall constitute an acceptable excuse. (Immediate family shall include spouse, parent, grandchild, grandparent, stepparents, brother, sister and child/stepchildren).

Section 2 The holidays as listed below will be observed as non-work days. Whenever such holidays as determined fall on a Saturday and the activity, except those required to operate during holiday periods, may be closed to public business on the preceding Friday, or the succeeding Monday, in lieu of such holidays, then such Friday or Monday, shall be deemed to be a holiday.

- | | |
|-----------------------------------|----------------------|
| (1) New Year's Day | (6) Labor Day |
| (2) Martin Luther King's Birthday | (7) Columbus Day |
| (3) President's Day | (8) Veteran's Day |
| (4) Memorial Day | (9) Thanksgiving Day |
| (5) Independence Day | (10) Christmas Day |

In locations where there are more than ten (10) holidays, the additional holidays shall be specified as the member's birthday or specified on the Addendum A and in the Department of Labor Wage Determination.

Section 3 Employees working on a holiday within their basic workweek, (40 hours or less) will receive the same pay as they would normally receive on a regular work day, plus a regular day's pay in lieu of the day off.

Section 4 Employees working on a holiday beyond their basic workweek, meaning a sixth (6th) or seventh (7th) day, and in excess of forty (40) hours, shall receive payment at the rate of time and one half (1-1/2) for that day, plus a regular days pay in lieu of the day off.

Section 5 If one (1) of the aforementioned holidays falls within an employee's scheduled vacation, such employee shall receive one (1) additional day of paid vacation.

Section 6 The Employer shall allow time off with pay for any other holiday which may hereinafter be declared as a general holiday by the President of the United States or by an act of Congress of the United States.

ARTICLE XVII

VACATIONS

Section 1 Employees shall receive paid vacation as identified in Addendum A covering their location. Vacation shall not be paid or earned on a pro rata basis, or during a period of lay-off. Vacation pay shall be figured on the basis of the employee's normal workweek for regular employees. Vacation pay for casual employees shall be prorated to the average number of hours worked in the prior year.

Section 2 The Employer shall offer the employees the opportunity to request their vacation in advance for approval. This vacation schedule shall be approved no later than March 15 of each year. In the selection of vacations, the employee's seniority shall be the determining factor. Once the

vacation schedule is completed and approved, it can not be arbitrarily changed by the Employer. Employees shall not be required to schedule their vacation in advance, as stated above, but when getting unscheduled vacation approved at a later date, it must be understood that approved vacations on the vacation schedule shall be recognized first in cases where an employee is requesting the same days off as another employee. Vacations must be used within the twelve (12) months following the employee's anniversary date.

Section 3 Notwithstanding that an employee is otherwise entitled to a vacation, and has qualified for same, he/she forfeits all vacation pay or privileges if prior to taking his/her vacation, he/she quits without giving the Company one (1) week's written notice of his/her intention to quit.

ARTICLE XVIII

SICK LEAVE

Section 1 Employer will comply with Paid Sick Leave Executive Order 13706. Employees shall be entitled to sick leave with pay at the employee's regular rate, as identified in Addendum A covering their location. Sick leave shall be earned by part-time employees on a pro rata basis compared to a full-time (35-hour/week) employee. For employees who work an irregular schedule of weekly hours which is dependent upon workload (as agreed to by signatories to the agreement), sick leave shall be figured on the basis of the average hours worked each week in the previous twelve (12) months of employment. There will be no payout of unused sick leave.

Section 2 No sick leave pay shall be paid for less than one hour. The Employer may require medical proof of illness for absences in excess of three (3) days.

ARTICLE XIX

FUNERAL LEAVE

Funeral leave as identified in Addendum A, shall be recognized as follows: An employee who has death in his or her immediate family, defined as his or her Mother, Father, Spouse, Son, Daughter, Brother, Sister, Mother-in-law, Father-in-law, grandchild, or a member of his or her immediate family through adoption or guardianship, shall be paid up to and including three (3) days pay at their regular rate for time missed within one (1) week of the funeral. Stepparents, stepchildren, and grandparents shall be considered immediate family.

ARTICLE XX

HEALTH AND WELFARE

The Employer shall contribute for each hour for which an employee covered by this Agreement is entitled to pay, to the **Laborers' National Health and Welfare Fund** in accordance with Addendum B to this Agreement. The Employer and the Union hereby adopt the Agreement and Declaration of Trust establishing said Fund, a copy of which has been provided to each, and agrees to comply therewith.

ARTICLE XXI

PENSION

The Employer shall contribute for each hour for which an employee covered by this Agreement is entitled to pay, to the **Laborers' International Union of North America National (Industrial) Pension Fund** in accordance with Addendum B to this Agreement. The Employer and the Union hereby adopt the Agreement and Declaration of Trust establishing said Fund, a copy of which has been provided to each, and agrees to comply therewith.

ARTICLE XXII

SCETT FUND TRAINING

The Employer shall contribute for each hour for which each employee covered by this Agreement is entitled to pay, to the Laborers-Employers Service Contract Education and Training Trust Fund at the rate set forth in Addendum A to this Agreement. The Employer and the Union hereby adopt the Agreement and Declaration of Trust establishing said Fund, a copy of which has been provided to each, and agrees to comply therewith.

ARTICLE XXIII

HIRING OF EMPLOYEES

Section 1 The Employer agrees that it will contact the Union office and give the Union an opportunity to furnish all classes of employees covered by this Agreement. If the Union cannot supply the needed personnel, the Employer may obtain applicants from any and all sources for the particular requirement. Selection of applicants for referral to or for employment on jobs shall be on a non-discriminatory basis and shall not be based on, or in any way affected by Union membership, bylaws, rules, regulations, constitutional provisions or any other obligation or aspect of Union membership, policies or requirements. The Union will accommodate any hiring requirements imposed on the Employer by federal or state laws and regulations.

Section 2 The Employer will furnish the Union with the names and addresses of all newly hired employees.

Section 3 When the Employer is awarded a new service contract in a location where the Laborers' International Union already represents employees through a prior collective bargaining agreement with the predecessor contractor, the Employer signatory to this Agreement agrees to retain the necessary number of employees of the predecessor contractor required for Service Contract performance, Article IX, Seniority, shall apply to the selection of employees.

Section 4 The Employer will promptly notify the Union by email, phone call or in writing of any vacancies that arise in positions in the bargaining unit and advise the Union on its plans for filling such positions.

Section 5 Prior to any reduction in hours or lay-offs, the Employer will promptly notify the Union by email, phone call in writing in order to discuss the effects of the decision.

ARTICLE XXIV
WASH AND WEAR UNIFORMS

The Employer shall provide three (3) initial wash and wear uniforms for each employee to wear. One (1) additional new wash and wear uniform shall be provided to each employee, without cost, every twelve (12) months. The employees shall launder and maintain their uniforms at their own expense.

ARTICLE XXV
MISCELLANEOUS

Section 1 The Employer will provide facilities where all employees may eat their meals at their regularly scheduled times, provided such facilities are made available by the U.S. Government.

Section 2 The Employer agrees to give the International Union a copy of the Employer's written personnel policies and copies of the job descriptions for all classifications in the bargaining unit. If no job description exists for a job classification, it will be immediately negotiated jointly by the Union and the Employer.

Section 3 Supervisors and other personnel outside the bargaining unit, shall not regularly perform bargaining unit work so as to replace bargaining unit employees. The parties to this Agreement recognize however, that such activity may be necessary from time-to-time to ensure the efficient and profitable operation of the Employer and therefore, agree that such activity is not violation of the provision to this Agreement.

Section 4 The pay period and pay day shall be semi-monthly.

Section 5 Employees, who are discharged from the services of the Employer, shall receive their wages and personal property upon quitting. No employee who is discharged or resigned will receive any wage until he/she has furnished proof that his/her file at Base Security has been cleared, all badges/passes surrendered, and has cleared the Employer's property files. No wages will be released until all uniforms are turned in to the Employer in a clean and unabused form.

Section 6 The Union agrees to encourage all employees in the bargaining unit to adhere to and follow rules and regulations as outlined in Article VII, Section 3 of this Agreement.

Section 7 All employees will be treated with dignity and respect.

ARTICLE XXVI
NO STRIKES - NO LOCKOUTS

Section 1 It is the intent and purpose of the parties hereto, set forth herein, this basic Agreement covering wages, hours of work and other terms and conditions of employment to be observed by the parties and to provide a procedure for the prompt and equitable resolution of disputes and grievances arising between the parties. Accordingly, it is agreed that there shall be no

interruptions in or impediments to the Employer's operations, or any stoppages, strikes, or lockouts during the life of this Agreement arising out of such dispute or grievance. Instead, such disputes and grievances shall be peacefully resolved under the grievance procedure provided in Article VIII.

Section 2 It is agreed that in all cases of any unauthorized strikes, slowdowns, walkouts, or any other unauthorized acts of the employees of the Employer, or of any affiliated Local Union and/or District Council, or official thereof, the Union shall promptly undertake to induce employees to return to their jobs and to process any dispute under Article VIII and no liability shall attach to the Union unless, and until, any such unauthorized act has been expressly ratified by the Union. The Employer acknowledges that stewards are not authorized to act for the Union in connection with any strike, slowdown or other job action, or in connection with amending the terms of this Agreement.

ARTICLE XXVII **INVALIDITY**

In the event that any term or provision of this Agreement shall be declared in violation of federal or state law, or shall, through action of any federal or state legislation become unlawful, such term or provision shall be void and of no effect in that particular jurisdiction. All other terms and conditions of this Agreement shall remain in full force and effect. In the event the wages and fringe benefits contained in Addendum A are found by the Secretary of Labor to be at substantial variance with the prevailing wage rates, or the result of less than arm's-length negotiations, pursuant to Article 4(c) of the Service Contract Act, the Employer shall be obligated to pay only the wages and fringe benefits specified in the new wage determination issued by the Department of Labor.

ARTICLE XXIII **HEALTH AND SAFETY**

The Employer and the Union agree that they will cooperate in the enforcement of Health and Safety standards and rules that may be established by the Employer in compliance with OSHA or other statutory regulations.

ARTICLE XXIX **PHYSICAL EXAMINATION**

If required by the Contracting Agency, the Employer may require an employee to undergo a physical examination and it shall have the right to select the examining physician, request the physician to conduct specific tests, and to receive a written report from the physician as to his/her findings. Such reports shall be considered and treated in a confidential manner by the Employer. The total cost of such physical examinations, exclusive of any treatment given, shall be borne by the Employer.

ARTICLE XXX **MANAGEMENT CLAUSE**

Section 1 The Employer retains the sole rights in its discretion to manage its business to hire, discharge for cause, lay off, assign, transfer and promote its employees; to determine the starting and quitting time and the number of hours to be worked and all other rights and prerogatives

subject only to such regulations and restrictions governing the exercise of these rights as expressly provided in this Agreement.

Section 2 The execution of this Agreement shall not create any vested rights in the employees of the Employer and all rights not specifically relinquished by the Employer in this Agreement, shall remain the Employers.

ARTICLE XXXI

REOPENER CLAUSE FOR LOCAL WAGE ADDENDA

The Employer and the Union agree to meet for the purpose of negotiating local area wages and fringe benefits to be attached as Addendum A. By mutual agreement between the Employer and the Union, these negotiations shall commence between sixty (60) and one hundred twenty (120) days prior to the expiration date of the Employer's contract with the federal installation described in Addendum A.

ARTICLE XXXII

SUCCESSORS AND ASSIGNEES

This Agreement shall be binding upon, and shall ensure to the benefit of the parties hereto, their successors and assignees.

ARTICLE XXXIII

SAVINGS CLAUSE

In the event that any term or provision of this Agreement shall be declared in violation of state or federal law, or shall, through action of any federal or state legislation become unlawful, such term or provision shall be void and of no effect in that particular jurisdiction. All other terms and conditions of this Agreement shall remain in full force and effect.

ARTICLE XXXIV

DRUG ABUSE PREVENTION & DETECTION

The parties recognize the problems which drug abuse has created in all industries and the need to develop drug abuse prevention programs. Accordingly, the parties agree that in order to enhance the safety of the workplace and to maintain a drug-free work environment, the Employer may require applicants or employees to undergo drug screening. The following terms have been agreed upon by the Union and the Employer:

- (a) It is understood that the use, possession, transfer or sale of illegal drugs, narcotics or other unlawful substances, is prohibited while employees are on the Employer's job premises or while working on any site in connection with work performed under the applicable Agreement.

(b) The Employer may require that an employee be tested for drugs where the Employer has reasonable cause to believe that the employee is impaired from performing his/her job. Observation must be made by at least two (2) persons. This provision shall be applied in a non-discriminatory manner. Supervisors will administer the program in a fair and confidential manner. For employees who refuse to take a test where the prerequisites set forth in this paragraph have been met, there will be a refutable presumption that the test result would have been positive for an unlawful substance. All costs associated with this testing shall be the sole responsibility of the Employer.

(c) The Employer may require that an employee who contributed to an accident and/or submitted a report of personal injury in the workplace, be tested for drugs where the Employer has reasonable cause to believe that the accident or injury resulted from drug usage, e.g., performance, significant attitude change, absenteeism, etc. All costs associated with this testing shall be the sole responsibility of the Employer.

(d) There will be no random drug testing by the signatory Employer.

(e) A sufficient amount of a sample shall be taken to allow for an initial test and a confirmation test. The initial test will be by Enzyme Multiplied Immunoassay Technique (EMIT). In the event a question or positive result arises from the initial test, a confirmation test must be utilized before action can be taken against the employee or applicant. The confirmation test will be by Gas Chromatography - Mass Spectrometry (GC/MS). Testing standards for both the initial test and confirmation test will be those established by the National Institute of Drug Abuse. Confirmed positive samples will be retained by the testing laboratory in a secured long term frozen storage for a minimum period of one (1) year. Handling and transportation of each sample must be documented through a strict chain of custody procedures. All costs associated with this testing shall be the sole responsibility of the Employer.

(f) Present employees, if tested positive, shall have the prerogative for a rehabilitation program at the employee's expense. When such program is successfully completed, the Employer shall not discriminate in any way against the employee. If work for which the employee is qualified exists, he/she shall be reinstated.

(g) Employees will be allowed to work while enrolled in a drug rehabilitation program, provided that documentation of attendance is submitted to the corporate office.

(h) Any dispute which arises under this drug policy shall be submitted to the grievance and arbitration procedure set forth in the applicable Agreement.

(i) The establishment or operation of this policy shall not curtail any right of an employee found in any law, rule or regulation. Should any part of this policy be found unlawful by a court of competent jurisdiction or a public agency having jurisdiction over the parties, the remaining portions of the policy shall be unaffected and the parties shall enter negotiations to replace the affected provision.

(j) The Employer shall indemnify and hold the Union harmless against any and all claims, demands, suits or liabilities that may arise solely out of the Employer's application of the Substance Abuse Program.

ARTICLE XXXV
EFFECTIVE DATE AND DURATION

This Agreement, entered into this 1st day of **April 2023**, shall be binding upon the parties hereto, their successors in the employing industry and their administrators, executors and assignees, and shall remain in full force and effect until **April 15, 2026** and shall continue in effect from year to year thereafter, unless written notice is given by the Union or the Employer ninety (90) days prior to the expiration date of its desire to modify, amend or terminate this Agreement. The parties shall begin good faith bargaining within fifteen (15) days after receipt of such notice.

Addenda attached hereto will be opened annually for renegotiating wages, fringes etc., as set forth in said Addenda. If the parties are unable to agree to changes in the aforementioned conditions, the parties shall be free to resort to economic recourse, notwithstanding the provisions of this Agreement.

Laborers' International Union of North America

Titan Facility Services, LLC



Brent Booker, General President



David Beaver, CEO

May 3, 2023

DATE

4/27/23

DATE

2954 E. Clifton Avenue
Street Address

Gilbert, AZ 85295
City, State and Zip Code

(480)993-0405 dbeaver@titanfs.org
Phone & Email

ADDENDUM "A"

**TO THE COLLECTIVE BARGAINING AGREEMENT
BETWEEN THE LABORERS' INTERNATIONAL UNION OF NORTH AMERICA
AND
TITAN FACILITY SERVICES LLC
AT
NORFOLK NAVAL STATION AND VARIOUS OTHER LOCATIONS
IN THE SEWELLS POINT AREAS, NORFOLK, VIRGINIA**

<u>ITEM</u>	<u>CLASSIFICATION</u>	<u>RATE EFFECTIVE</u> 4/1/2024	<u>RATE EFFECTIVE</u> 4/1/2025
Wages	Janitorial Janitorial Crew Leader Floor Specialist Floor Specialist Crew Leader	\$ 19.79 \$ 20.59 \$ 20.79 \$ 21.29	\$ 21.04 \$ 21.84 \$ 22.04 \$ 22.54
Health/Welfare	Man U Service	\$ 6.48 per hour paid	\$ 6.52 per hour paid
Pension	N10134 DEFAULT	\$ 2.36 per hour paid	\$ 2.46 per hour paid
Holidays		12 per collective agreement to include Juneteenth Day & Employees Birthday	
Vacation		1 week after 1 year 2 weeks after 2 years 3 weeks after 4 years 4 weeks after 10 years	1 week after 1 year 2 weeks after 2 years 3 weeks after 4 years 4 weeks after 10 years
Uniforms		Four (4) per employee	4 Uniforms per year and replaced as needed based on wear and tear.
Sick Leave		1 day per month; accumulation of up to 30 days. Employer will comply EO 13706	
Shift Differential	After 4:00 pm	\$ 0.35 per hour above regular rate	
Funeral Leave		3 days for immediate family; 1 additional day when traveling over 8 hours	
Jury Duty		Refer to CBA	
Training		\$.20 per hour paid (A personal education & training benefit for bargaining unit employees.)	
Government Closures		If the government closes the facilities for any reason and the Employer is compensated as a normal day of operations, the Employees will also receive their regularly schedule compensation.	

The parties have negotiated and agreed to the above changes in the articles covering wage and fringe benefits under the provision established in the Re-Opener Clause. In the event there are conflicts between the language of the collective bargaining agreement and this Addendum A, the language of this Addendum shall apply.

LABORERS' INTERNATIONAL UNION OF NORTH AMERICA

TITAN FACILITY SERVICES LLC

 BRENT BOOKER, GENERAL PRESIDENT

David Beaver

 DAVID BEAVER, CEO

 DATE

 3/14/2025

 DATE

NOTE: To satisfy the FAR Requirement of 22.1010, the notice should be sent to Orlando A. Bonilla at obonilla@maliuna.org or cell number 703-473-1325

NATIONAL SERVICE CONTRACT AGREEMENT

ADDENDUM B

PENSION, HEALTH AND WELFARE AND TRAINING BENEFIT FUNDS

The Employer has agreed to make Pension and Health and Welfare Fund contributions on behalf of every employee covered by the Agreement. This Addendum sets forth more particularly the terms and conditions of the Employer's contribution obligations to these Funds, subject to any rights reserved by the Fund's trustees to accept or not accept the unit of employees covered by the Agreement into participation.

Section 1: LIUNA National (Industrial) Pension Fund

(a) The Employer shall contribute to the **Laborers' International Union of North America National (Industrial) Pension Fund** for each hour for which an employee covered by this Agreement is entitled to pay, including hours of paid vacation, paid holidays and other periods for which pay is paid or owed to an employee. The hourly contribution rate shall be the rate set forth in Addendum A to the Agreement. Contributions to the Fund for an employee shall commence with the employee's first (1st) day of employment in a classification covered by the Agreement.

(b) Contributions to the Fund shall be due on a monthly basis and specifically by the twentieth (20th) day of the first month following the month during which the contributions accrued, unless otherwise expressly required by the Fund's Board of Trustees. The Employer shall also submit to the Fund on a monthly basis such contribution reports, as the Board of Trustees may require to verify the amount of contributions owed (if any) for the preceding month. Such reports shall be submitted to the Fund on the same schedule as contributions and shall be submitted even if the employees performed no work and no contributions are owed to the Fund for the month covered by the report.

(c) The Fund shall have the right and authority to have a certified public accounting firm audit the payroll and other records of the Employer for purposes of verifying the accuracy of the contributions made to the Fund by the Employer, verifying employee eligibility and other purposes necessary for administration of the Fund. The Employer and the Union also agree to provide the Fund with any and all truthful information necessary for administration of the Fund.

(d) All contribution payments shall be made payable to the "**LIUNA National (Industrial) Pension Fund**" and sent to the Fund at 905 16th Street NW, Washington, DC 20006.

(e) If the Employer fails to submit contributions or contribution reports to the Fund when due, it shall be considered in default and shall be subject to charges for interest, liquidated damages,

attorneys fees, costs, audit fees and other costs of collection in accordance with the Fund's Agreement and Declaration of Trust. The Fund shall have the right to take any and all lawful action to secure payment of contributions and submission of the commencement of legal proceedings against the Employer and others acting on its behalf. The Employer's obligation with respect to the Fund shall not be subject to any grievance or arbitration procedure provided under the Agreement. The Union shall have the right to take whatever steps it deems necessary to secure compliance by the Employer with its contribution obligations.

(f) The Employer and the Union agree to accept, be bound by and comply fully with a copy of the Fund's Agreement and Declaration of Trust, a copy of which has been provided to both.

Section 2: Laborers' National Health and Welfare Fund

(a) Each employee covered by the Agreement shall be covered by the following benefit plan(s) identified in the Addendum "A", which is offered by the **Laborers' National Health and Welfare Fund**, subject to the plan's eligibility rules and the Fund's right to withhold payment of benefits in the event that the Employer fails to make the contributions required thereunder or otherwise defaults on its obligations thereunder.

☐ PLAN I

☐ PLAN II

(b) The Employer shall contribute to the Fund for each hour for which each employee covered by this Agreement is entitled to pay, including hours of paid vacation, paid holidays and other periods for which pay is paid or owed to an employee. The hourly contribution rate shall be the rate set forth in Addendum A to the Agreement. Contributions to the Fund for an employee shall commence with the employee's first (1st) day of employment in a classification covered by the Agreement.

(c) Contributions to the Fund shall be due on a monthly basis and specifically by the twentieth (20th) day of the first (1st) month following the month during which the contributions accrued, unless otherwise expressly required by the Fund's Board of Trustees. The Employer shall also submit to the Fund on a monthly basis such contribution reports, as the Board of Trustees may require to verify the amount of contributions owed (if any) for the preceding month. Such reports shall be submitted even if the employees performed no work and no contributions are owed to the Fund for the month covered by the report.

(d) The Fund shall have the right and authority to have a certified public accounting firm audit the payroll and other records of the Employer for purposes of verifying the accuracy of the contributions made to the Fund by the Employer, verifying employee eligibility and other purposes necessary for administration of the Fund. The Employer and the Union also agree to provide the Fund with any and all truthful information necessary for administration of the Fund.

(e) All contribution payments shall be made payable to “**Laborers’ National Health and Welfare Fund**” and sent to the Fund at 905 16th Street NW, Washington, DC 20006.

(f) If the Employer fails to submit contributions or contribution reports to the Fund when due, it shall be considered in default and shall be subject to charges for interest, liquidated damages, attorneys fees, costs, audit fees and other costs of collection in accordance with the Fund's Agreement and Declaration of Trust. The Fund shall have the right to take any and all lawful action to secure payment of contributions and submission of the commencement of legal proceedings against the Employer and others acting on its behalf. The Employer's obligations with respect to the Fund shall not be subject to any grievance or arbitration procedure provided under the Agreement. The Union shall have the right to take whatever steps it deems necessary to secure compliance by the Employer with its contribution obligations.

(g) Notwithstanding the foregoing, it is understood that the Fund's Board of Trustees shall have the right to modify the contribution rates required to maintain a particular level of benefits during the term of the Agreement. If the Board of Trustees exercises that right, the Employer shall have the right to terminate participation in the Fund subject to any bargaining or other legal obligations it may owe to the Union. Participation shall not be deemed terminated under the terms of this paragraph until written notice thereof is received in the office of the Fund's Administrator.

(h) The Employer and the Union agree to accept, be bound by and comply fully with the terms of the Fund's Agreement and Declaration of Trust, a copy of which has been provided to both.

Section 3 - Laborers-Employers Service Contract Education and Training Fund

(a) The Employer shall contribute to the **Laborers-Employers Service Contract Education and Training Fund** for each hour for which an employee covered by this Agreement is entitled to pay, including hours of paid vacation, paid holidays and other periods for which pay is paid or owed to an employee. The hourly contribution rate shall be the rate set forth in Addendum A to the Agreement. Contributions to the Fund for an employee shall commence with the employee's first (1st) day of employment in a classification covered by the Agreement.

(b) The Employer shall submit contributions due for work performed during a month to the Fund by the twentieth (20th) day of the month immediately following and shall also submit to the Fund such reports as the Fund's Board of Trustees deems necessary to verify the Employer's contributions. Interest at the rate of one and one half percent (1.5%) per month compounded, shall be assessed against the Employer for all contributions past due for more than thirty (30) days unless expressly waived in whole or part by the Board of Trustees. If the Employer becomes delinquent in making required contributions or reports to the Fund, the Union and the Fund shall have the right to take whatever steps they deem appropriate to secure compliance by the Employer with its obligations, notwithstanding any provision of this Agreement to the contrary.

(c) The Fund shall have the right and authority to have a certified public accounting firm audit the payroll and other records of the Employer for purposes of verifying the accuracy of

the contributions made to the Fund by the Employer, verifying employee eligibility and other purposes necessary for administration of the Fund. The Employer and the Union also agree to provide the Fund with any and all truthful information necessary for administration of the Fund.

(d) All contribution payments shall be made payable to the **"Laborers-Employers Service Contract Education and Training Fund"** and sent to the Fund at 905 16th Street NW, Washington, DC 20006.

(e) If the Employer fails to submit contributions or contribution reports to the Fund when due, it shall be considered in default and shall be subject to charges for interest, liquidated damages, attorneys fees, costs, audit fees and other costs of collection in accordance with the Fund's Agreement and Declaration of Trust. The Fund shall have the right to take any and all lawful action to secure payment of contributions and submission of the commencement of legal proceedings against the Employer and others acting on its behalf.

(f) The Employer and the Union agree to accept, be bound by and comply fully with a copy of the Fund's Agreement and Declaration of Trust, a copy of which has been provided to both.